

23AVCV00898 23AVCV00898

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Case Number: 23AVCV00898 Hearing Date: August 20, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ARTHUR ANTOINE H. TEERLYNCK,

Plaintiff,

v.

DON H.B. CALLAWAY, an individual, also known as DON HOWARD BLANCHARD CALLAWAY, also known as DON HOWARD CALLAWAY, also known as DON H. CALLAWAY, also known as DONALD H. CALLAWAY, also known as DON CALLAWAY, also known as DONNY CALLAWAY, also known as DONNIE CALLAWAY, CARA CALLAWAY, an individual. and DOES ONE through TWENTY, inclusive,

Defendants.

Case Number 23AVCV00898

[TENTATIVE]

RULING ON MOTION

Date of Hearing: August 20, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a business tort action. Defendant Pacific Automotive Services, also known as Pacific Lien Sales specially moves to strike Plaintiff Arthur Antoine H. Teerlynck's (Plaintiff's) causes of action asserted against it.

On August 11, 2023, Plaintiff filed a complaint against Don H.B. Callaway (Don) and Cara Callaway (Cara) (together Defendants), asserting nineteen causes of action for (1) Unfair Business Practices (Injunctive Relief – Cal. Bus. & Prof. Code §§ 17203-17204; Cal. Code Civ. Proc. § 525-534) against all defendants; (2) Violation of the Automotive Repair Act (Cal. Bus. & Prof. Code §§ 9880, 9984, et seq.; Title 16 CCR §§ 3353, 3356) against all defendants; (3) Violation of the California Vehicle Codes §§ 9262 and 11735 et seq. against Don; (4) Breach of Contract as to the Daytona Ferrari against Don; (5) Breach of Contract as to the Maserati against Don; (6) Breach of Contract as to the Ferrari 512BB against Don; (7) Breach of Contract as to the Alfa Romeo Boano against Don; (8) Breach of Contract as to the Alfa Romeo Ghia against Don; (9) Breach of Contract as to the Jaguar against Don; (10) Breach of Contract as to the Corvette against Don; (11) Breach of Contract as to the Ferrari 328 against Don; (12) Breach of Contract as to the Alfa Romeo Duetto against Don; (13) Breach of Contract as to the RR Flying Spur against Don; (14) Fraud in Inducement against Don; (15) Fraud – Intentional Misrepresentation against Don; (16) Negligent Misrepresentation against Don; (17) Trespass to Chattels against Don; (18) Conversion against Don; and (19) Appointment of Receiver against all Defendants.

On May 2, 2024, Plaintiff filed a notice of related case in the Superior Court of California, County of San Diego, case number 37-2023-000126360-PR-CP-CTL, in the County of Los Angeles, case number 24AVCV00444, and in the Maricopa County Superior Court in the State of Arizona, criminal case number S-0700-CR204115322. The Court consolidated the Los Angeles County cases with the present case as lead.

On June 2, 2026, Plaintiff amended the complaint and named Pacific Liens as Doe No. 1, Pacific Lien Sales as Doe No. 2, and Pacific Automotive Services as Doe No. 3.

On July 6, 2026, Pacific Automotive Services, also known as Pacific Lien Sales (PLS) filed the present Anti-SLAPP motion to strike.

On August 5, 2026, Plaintiff filed an opposition.

On August 12, 2026, PLS filed a reply.

II. Legal Standard

Standard for Anti-SLAPP Motion to Strike – “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”² (Code Civ. Proc., § 425.16, subd. (b)(1).) Acts protected under the statute include “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Id., subd. (e).)

The trial court applies a burden shifting analysis when considering a special anti-SLAPP motion to strike brought under section 425.16. (See *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 278, citing *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) First, the moving party must make a threshold showing that the challenged cause of action arises from “any act of that person in furtherance of the person’s right of petition or free speech under the [federal or state constitution] with a public issue.” (Code Civ. Proc., § 425.16, subd. (b); see *Soukup*, supra, 39 Cal.4th at p. 278.) Second, If the moving party meets its threshold burden, the burden then shifts to the opposing party to demonstrate a probability of prevailing on the merits of the claims at issue. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67.)

III. Discussion

Application – PLS moves to strike all causes of action asserted against it pursuant to Code of Civil Procedure section 425.16, subdivision (b)(1) on the grounds that it was engaged in a protected activity pursuant to California’s anti-SLAPP statute. (Notice of Motion, p. ii:4-6.) As the moving party, PLS bears the burden of establishing that the conduct in question amounts to a protected activity.

The only causes of action asserted against PLS (named as Doe Nos. 1-3) in the operative complaint are: (1) First Cause of Action for Unfair Business Practices, (2) Second Cause of Action for Violation of the Automotive Repair Act, and (3) Nineteenth Cause of Action for Appointment of Receiver.

a. Step One: PLS’s Burden of Establishing the Claims Arise from Protected Activity Under the Anti-SLAPP Statute

The moving party has the initial burden in bringing an anti-SLAPP motion “to demonstrate that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [moving party]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute.” (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728, 733.) At this stage, “the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ ” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063.) The defendant’s burden is to “identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*).)

At the first stage of the anti-SLAPP inquiry, “ ‘the question is only whether a defendant has made out a prima facie case that activity underlying a plaintiff’s claims is statutorily protected [citations], not whether it has shown its acts are ultimately lawful.’ [Citation.] ‘If the acts alleged in support of the plaintiff’s claim are of the sort protected by the anti-SLAPP statute, then anti-SLAPP protections apply.’ ” (*Billauer v. Escobar-Eck* (2023) 88 Cal.App.5th 953, 963.)

Here, PLS argues that while the exact allegations made against it are somewhat uncertain, as PLS is not named in the complaint but was added as a defendant in a later amendment, each cause of action asserted against it falls within the scope of the anti-SLAPP statute, as they arise out of PLS’s “written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law” and “written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law,” and not upon any other independently tortious conduct. (Code Civ. Proc., § 425.16, subd. (e)(1)-(2); Notice of Motion, p. ii:7-14.) Specifically, PLS argues that the allegations against PLS appear to concern only its involvement in submitting a Notice of Lien Sale with the DMV for a Ferrari Daytona on July 21, 2022, and a separate Notice of Lien Sale for a Maserati on September 19, 2022, which constitute protected activity. (Motion, p. 8:7-13; Compl., ¶¶ 81, 83.) Thus, PLS argues that any allegations directed at PLS arise solely from its professional involvement in submitting documents to the DMV for a statutory lien sale. PLS asserts its alleged processing of a vehicle lien sale through the DMV “protected petitioning activity and an official proceeding authorized by law.” (Motion, p. 8:20-21.)

PLS has provided the Declaration of Jay Parille, owner and sole proprietor of PLS, who states that PLS provides lien sale processing services for business and individuals who have claims for unpaid repair, towing, storage, or related charges concerning vehicles or vessels in California pursuant to California Civil Code sections 3071 and 3072. (Parille Decl., ¶ 2.) Parille states that PLS only assists with processing of paperwork and service of notices in compliance with statutory requirements for its clients, but that its role is administrative and limited to processing DMV lien sale paperwork, and PLS does not repair, tow, store, possess, or sell vehicles for its customers and does not verify the validity of the underlying charges or determine ownership rights. (Parille Decl., ¶ 2.)

In opposition, Plaintiff concedes that filing documents with a government agency, including the DMV, is generally a protected petitioning activity. (Opp., p. 8:6-7.) However, Plaintiff argues that this petitioning activity does not constitute a protected activity due to the Supreme Court's decision in *Flatley v. Mauro* (2006) 39 Cal.4th 299. *Flatley* holds that a defendant cannot use anti-SLAPP laws to strike a lawsuit if the defendant's asserted speech or petitioning activity is illegal as a matter of law. (Opp., p. 8:7-10.) Plaintiff argues that because PLS's petitioning activity allegedly consisted of false or forged documents to be recorded with the state, the activity was illegal as a matter of law.

Penal Code section 115, subdivision (a) states that "[e]very person who knowingly procures or offers any false or forged instrument to be filed, registered, or recorded in any public office within this state, which instrument, if genuine, might be filed, registered, or recorded under any law of this state or of the United States, is guilty of a felony." (Emphasis added.) Vehicle Code section 20 provides that "[i]t is unlawful to use a false or fictitious name, or to knowingly make any false statement or knowingly conceal any material fact in any document filed with the Department of Motor Vehicles or the Department of the California Highway Patrol." (Emphasis added.)

The Supreme Court held in *Flatley* that where "the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff's action." (*Flatley*, supra, 39 Cal.4th at 320.) "*Flatley* emphasized that in the examination of the first prong of the anti-SLAPP analysis, an activity was not protected as a matter of law only when the evidence conclusively established the illegality. Otherwise, it was an issue to be addressed when the plaintiff was called upon to provide a prima facie showing of the merits of the case." (*Park 100 Investment Group II, LLC v. Ryan*, 180 Cal. App. 4th 795, 806.) An illegal act is an act that is forbidden by law. (*Soukup*, supra, 39 Cal.4th at 283.)

The filing of an application for a lien sale is expressly authorized by law. (Civ. Code, § 3071, subd. (a) ["A lienholder shall apply to the department for the issuance of an authorization to conduct a lien sale pursuant to this section for any vehicle with a value determined to be over four thousand dollars (\$4,000)."].) Unlike the speech at issue in *Flatley* – which was an extortionate demand on its face – the activity here is a garden variety filing of state authorized forms to seek authority to conduct a sale. There is nothing per se illegal about that.

Furthermore, Plaintiff has not produced any evidence "conclusively establishing" that PLS knew the information on any of the forms was false, and thus, provides no evidence establishing the illegality of PLS's filing of the Applications for Lien Sale Authorization or the Lienholder's Certification with the DMV. PLS also does not concede that the petitioning activity was illegal as a matter of law. (Reply, p. 4:14-15.) Thus, Plaintiff's reliance on *Flatley* is inapposite and PLS's act of filing the notice with DMV remains activity protected under the anti-SLAPP statute.

It is clear from the moving and opposition papers here that Plaintiff's causes of action and claims against PLS arise only from its filing of documents with the DMV. (See Opp., p. 8:16-18, 9:19-10:5; 10:14-19.) Such filings are protected activity under the anti-SLAPP statute. Therefore, the Court finds that PLS has met its burden of establishing that the conduct giving rise to Plaintiff's complaint and his causes of action against PLS is protected activity under the anti-SLAPP statute. The burden shifts to Plaintiff to make a showing of probability of success on the merits.

b. Step Two: Plaintiff's Burden of Establishing Probability of Success on the Merits

Once the court has found the moving party has made the requisite showing, "it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim." (*Jarrow*, supra, 31 Cal.4th at p. 733.) In considering whether the

opposing party has met its burden, “[t]he court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law.” (Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co. (2019) 6 Cal.5th 931, 940.)

Notably, it is well established that “[a]s to the second step inquiry, a plaintiff seeking to demonstrate the merit of the claim ‘may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.’” (Id. at 940.) “[E]vidence may be considered at the anti-SLAPP motion stage if it is reasonably possible the evidence set out in supporting affidavits, declarations or their equivalent will be admissible at trial.” (Id. at 940, 947.)

i. First Cause of Action for Unfair Business Practices

To set forth a claim for a violation of Business and Professions Code section 17200 (“UCL”), Plaintiff must establish Defendant was engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (Bus. & Prof. Code, § 17200.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.)

Unfair competition is “any unlawful, unfair or fraudulent business act or practice.” (Bus. & Prof. Code § 17200.) A cause of action under the UCL must be stated with “reasonable particularity.” (Gutierrez v. Carmax Auto Superstores California (2019) 19 Cal.App.5th 1234, 1261.) Claims by private plaintiffs can only be brought by “a person who has suffered injury in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code, § 17204.) “[A]n ‘unfair’ business practice occurs when that practice ‘offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.’ [Citation.]” (Smith v. State Farm Mutual Automobile Ins. Co. (2001) 93 Cal.App.4th 700, 718–719.)

Here, the Court finds that Plaintiff has failed to establish a probability of success on the merits through competent evidence. While it is true courts must generally accept an opposing party’s evidence as true in deciding whether there is a showing of probability of success, unlike a demurrer, the Court does not generally accept all allegations of fact pleaded in a complaint as true in ruling on an anti-SLAPP motion. (See Sweetwater, supra, 6 Cal.5th at 940.)

Plaintiff asserts there is high probability he will prevail on the merits, as (1) Don and Callaway Co have engaged in the business of repairing and restoring vintage, classic vehicles without a license, (2) Don never disclosed to Plaintiff that he was not a licensed automotive mechanic, (3) Defendants and Callaway Co operated from Cara’s property without a license in violation of the Business and Professions Code, (4) Defendants have failed and refused to provide Plaintiff with a written estimate for the cost of repairs and services to be performed, (5) Don represented himself as a Vehicle Dealer and Auto Broker to Plaintiff and engaged in the arrangement and negotiation of the purchase of Plaintiff’s vehicles, (6) Don and PLS conspired to prepare and file fraudulent lien sale documents for non-existent storage fees for the Daytona Ferrari and the 1967 Alfa Romero with the DMV, and (7) Don fraudulently obtained duplicate copies of titles for several of Plaintiff’s vehicles and thereafter sold the cars to third parties. (Opp., p. 11:16-12:5.) The only relevant inquiry on the present motion is wrongdoing attributed to PLS. The wrongful conduct asserted against Don, Cara, Callaway Co, alone is besides the point.

Here, the only wrongful conduct asserted against PLS is the preparation and submission of lien sale paperwork to the DMV pursuant to the alleged civil conspiracy between PLS and Don in commencing an unlawful lien sale of his Ferrari and Alta Romero. (Opp., p. 10:14-24.)

To start, civil conspiracy is “not an independent cause of action,” but a “theory of co-equal legal liability under which certain defendants may be held liable for ‘an independent civil wrong.’” (Navarrete v. Meyer (2015) 237 Cal.App.4th 1276, 1291.) “Under a conspiracy theory of recovery, liability depends on the actual commission of a tort.” (Ibid., emphasis added.) The elements of an action for civil conspiracy are the formation and operation of the conspiracy and damage resulting to plaintiff from an act or acts done in furtherance of the common design.” (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994)

7 Cal.4th 503, 511, citation omitted.) Plaintiff argues in opposition that PLS acted in conspiracy with Defendants to conduct fraudulent lien sales of Plaintiff's vehicles. (Opp., p. 9:1.) However, not only is there no allegation of conspiracy in Plaintiff's operative complaint, Plaintiff has also submitted insufficient evidence to establish any conspiracy, tortious conduct, or unfair business practices on PLS's part.

Plaintiff relies on the contents of his complaint and opposition, the Declaration of Jay Parille, provided by PLS, and furnishes only the Declarations of counsel Dennis C. Birkhimer (Birkhimer Declaration) and Plaintiff (Plaintiff's Declaration) as further evidence for the Court to consider and accept as true.

As established, Plaintiff cannot merely rely on the allegations of his complaint in opposing the present motion, but must provide or point to evidence potentially admissible at trial to support his cause of action in opposing an anti-SLAPP motion. (Ibid.; see *Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887 [plaintiff failed to carry burden of showing claim had minimal merit where factual assertions were unsupported by any evidence in the record].) Here, Plaintiff's oppositions do not point to, reference, identify, or provide any tangible piece of evidence which may be admissible at trial against PLS to establish civil conspiracy, knowledge of falsity of the documents filed with the DMV, or wrongdoing by PLS.

Plaintiff's argument in opposition rests on his contention that PLS is liable because it prepared and signed the Applications for Lien Sale Authorization and Lienholder's Certification under penalty of perjury, all of which were allegedly fraudulent and which PLS knew or had reason to know were false at the time they were filed. (Opp., p. 8:16-19.) Plaintiff also asserts that there was no reasonable basis on which PLS or Parille could have believed the filings were not fraudulent because "no one in their right mind would abandon a collector vehicle worth over half a million dollars for \$2,500," and because Parille knew Don was not a licensed mechanic, and nonetheless Parille conspired with Don, instructing him to conduct lien sales for non-existent storage fees. (Opp., p. 8:19-25.) These arguments are devoid of any evidentiary support.

Turning to the Birkhimer Declaration provided in opposition, the only evidence presented as to PLS is that the Certification of Lien Sale for Vehicle Valued \$4,000 or Less regarding the Alfa Romero was signed by Don on April 11, 2022 and certified by PLS under penalty of perjury. (Birkhimer Decl., ¶ 8, Ex. C.) This does not establish PLS knew of the falsity of the information provided by Don, that PLS signed the document under penalty of perjury, which was signed by Don, or that PLS conspired with Don to illegally sell the vehicles.

Plaintiff's Declaration submitted in opposition is completely silent as to any wrongdoing by PLS, speaking only to the actions of Don, Cara, and Calloway Co.

Plaintiff also relies heavily on the Parille Declaration. Plaintiff contends the Parille Declaration establishes a probability of success on the merits because Parille declares he was originally approached by Don for assistance with the processing of lien sale documents with the DMV for work done on the vehicles, but because Don did not have a Bureau of Automotive Repair (BAR) Identification number, Parille informed Don PLS could not process a lien sale for the amount due for the work, but could process liens for storage fees. (Parille Decl., ¶ 4; Opp., p. 9:12-15.) Plaintiff asserts that this supports his causes of action against PLS because this evidences that Parille and Don conspired to institute and plan lien sales based on "bogus" and non-existent unpaid storage fees based on Parille's instruction. (Opp., p. 9:15-18.)

Plaintiff's leap in logic is completely unsupported by the evidence on the record. Plaintiff asserts this statement alone shows a conspiracy between Don and Parille, but provides no evidence that Parille knew there were no storage fees owed, that Parille made such a statement with the intent to enter into an unlawful scheme to fraudulently sell Plaintiff's vehicles, that Parille's offer to assist with the paperwork for a lien sale for storage fees was offered with knowledge that it would be a false instrument, or any other wrongdoing on Parille's or PLS's part. If anything, this merely reads as a business owner stating they could not assist in one regard, but could assist in another.

Parille further states that after he informed Don that PLS could process a lien sale for storage fees, told Don that he would need to complete a PLS Lien Sale form for each vehicle and return them to PLS for processing with the required fees, and that he then sent two PLS Lien Sale forms to Don for completion. (Parille Decl., ¶ 4.) PLS received the completed documents in the mail from Don, which were signed under the penalty of perjury as being true and correct, and PLS relied on the

information provided by Don and did not independently inspect either vehicle, verify the claimed storage charges, or determine whether Don had a possessory lien. (Parille Decl., ¶¶ 6-7.) After receiving the Lien Sale forms back from Don, PLS prepared and submitted the Applications for Lien Sale Authorization and Lienholder's Certification and mailed courtesy notices to each owner or interested party identified by Don on the PLS Lien Sale forms and listed in the DMV's records, including Plaintiff. (Parille Decl., ¶ 9.) On Don's request, PLS cancelled the lien sale on the Maserati and immediately sent a letter by fax to cancel the Application. (Parille Decl., ¶ 12.) On October 19, 2022, PLS received notice that the DMV had granted Don the authority to conduct the lien sale of the Ferrari, which PLS then mailed to Plaintiff on November 4, 2022 and published as statutorily required on November 11, 2022. (Parille Decl., ¶¶ 13-15.) Parille states that PLS does not conduct or perform the actual lien sale, and its role is limited to preliminary administrative acts undertaken in connection with lien sale procedures, and that after the DMV authorized the lien sale and all preliminary notices and publications were complete, PLS sent Don the DMV approval with instructions on how to conduct the public sale, and its role ended there. (Parille Decl., ¶ 16.) According to Parille, PLS had no role in determining whether the storage charges were valid, did not possess or inspect the Ferrari, did not conduct or attend the sale, did not receive any sale proceeds, and did not participate in any transfer of title. (Parille Decl., ¶ 16.)

Plaintiff has submitted no evidence to refute Parille's Declaration. Without any showing that PLS knew there were no storage fees incurred, knowingly offered to prepare false documents to fraudulently steal and sell Plaintiff's vehicles, or that Parille had any reason to know that the Applications for Lien Sale were fraudulent, Plaintiff has failed to establish a probability of success on the merits against PLS, either based on independent tort grounds or on the grounds of a civil conspiracy. Plaintiff has failed to produce any evidence at all that PLS engaged in any wrongdoing at all.

ii. Second Cause of Action – Violation of the Automotive Repair Act (Bus. & Prof. Code §§ 9880, 9984 et seq.)

In *Vasquez v. SOLO 1 Kustoms, Inc.* (2018) 27 Cal.App.5th 84, the Court held that there is no private cause of action for a violation of California Business and Professions Code section 9884.9. (Id at 94, 95-6.) Plaintiff has not argued otherwise, and in any event, has presented no evidence establishing any wrongdoing on PLS's behalf. Therefore, Plaintiff's second cause of action against PLS fails and cannot be maintained against PLS.

iii. Nineteenth Cause of Action – Appointment of a Receiver

Business and Professions Code section 17203 states that "[t]he court may make such orders or judgments, including the appointment of a receiver. . . as may be necessary to restore to any person in interest any money or property, real or personal, which may have been acquired by means of such unfair competition." When at issue property is in danger of being lost, removed, or materially injured, Code of Civil Procedure §564, subdivision (b)(9) grants the Court discretion to appoint a receiver to take possession of and protect the property during the litigation "where necessary to preserve the property or rights of any party."

Plaintiff has provided no evidence that PLS is, or ever has been, in possession of any of the subject vehicles.

Because no proof was made upon competent admissible evidence, the Court finds that Plaintiff has failed to meet his burden of establishing a probability of success on the merits against PLS for any asserted cause of action.

Accordingly, PLS's anti-SLAPP Motion is GRANTED.

c. Attorney's Fees Request

PLS requests an award of attorney's fees in the amount of \$25,195.00. (Motion, p. 10:20-23.) "[A] prevailing [moving party] on a special motion to strike shall be entitled to recover that [party]'s attorney's fees and costs." (Code Civ. Proc. § 425.16, subd. c(1).)

By prevailing here, PLS is entitled to its attorneys fees. It may seek those fees through a separately noticed motion.

IV. Conclusion

Defendant Pacific Automotive Services' Special Motion to Strike is GRANTED.